

Scrutiny Defects Raised

Diary No : 0710102027462018
Petitioner : CIL AUSTRALIA NORTH PTY. LTD
Respondent : M/S SHARP CORP LTD.

Serial No.	Description	Comments
1	Whether condition concerning default amount is fulfilled as per section 4 of IBC 2016. The minimum amount is specified at Rs. One lac and the proviso thereto.	
2	Whether the requisite fees i.e. Rs. 2000/- has been paid in favour of Pay and account officers, Ministry of Corporate Affairs, New Delhi™ through Demand Draft.	
3	Whether operational creditor meets the requirements of section 5 (20) and 5 (21) of IBC 2016.	
4	Whether the matter is within limitation as per the provisions of Limitation Act, 1963.	
5	Whether the application has been filed as per the territorial jurisdiction conferred in section 60 of IBC 2016.	
6	Whether demand notice of unpaid operational debtor copy of an invoice demanding payment of the amount involved in the default to the corporate debtor has been delivered as specified under section 8 (1) of the IBC 2016, in form-3 or 4 (under rule 5 of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016).	
7	Whether the operational creditor has not received payment or notice of dispute from the corporate debtor after expiry of period of ten days from date of delivery of the notice or invoice demanding payment.	
8	Whether the application has been filed after 10 days of receipt of demand notice.	

9	Whether the application is in form- 5 duly filled all five parts of the form (under rule 6 (1) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016) and accompanied with the fee prescribed under the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.	
10	Whether application has been annexed with annexures I to VI as given with form-5 of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016.	
11	Whether the operational creditor has accompanied the application with the following documents:	
12	(a) Copy of the invoice demanding payment or demand notice delivered by the operational creditor to the corporate debtor;	
13	(b) An affidavit to the effect that there is no notice given by the corporate debtor relating to a dispute of the unpaid operational debt;	
14	(c) a copy of the certificate from the financial institutions maintaining accounts of the operational creditor confirming that there is no payment of an unpaid operational debt by the corporate debtor; and	
15	(d) Any other information as may be required to substantiate the case, if any.	
16	Whether operational creditor has proposed resolution professional to act as an interim resolution professional and enclosed form-2 duly signed by proposed resolution professional (under rule 9 of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016) or an application under section 16 (3) of IBC, 2016.	
17	Whether AA has observed defects in application and issued notice to the applicant to remove the same?	
18	Whether applicant has rectified defects within one week of the date of receipt of such notice from the adjudicating Authority.	
19	Whether the application is complete in following manner:	
20	(a) The application made under section 9 (2) is complete;	

21	(b) There is no repayment of the unpaid operational debt;	
22	(c) The invoice or notice for payment to the corporate debtor has been delivered by the operational creditor;	
23	(d) No notice of dispute has been received by the operational creditor or there is no record of dispute in the information utility; and	
24	(e) There is no disciplinary proceeding pending against any resolution professional proposed under section 9 (4), if any.	
25	Whether the operational creditor has dispatched copy of application filed with adjudicating authority to the registered office of the corporate debtor (under rule 6 (2) of Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016).	
26	(a) The application made under section 9 (2) is incomplete;	
27	(b) There has been repayment of the unpaid operational debt;	
28	(c) The creditor has not delivered the invoice or notice for payment to the corporate debtor;	
29	(d) Notice of dispute has been received by the operational creditor or there is a record of dispute in the information utility; or	
30	(e) Any disciplinary proceeding is pending against any proposed resolution professional.	
31	(f) Any other defect observed by AA & communicated to the applicant.	
32	The Adjudicating Authority on finding application complete in all respect shall, within fourteen days of the receipt of the application by an order admit the application and communicate such decision to the operational creditor and the corporate debtor.	
33	Within 14 days of admission of the application AA has to appoint IRP as proposed and if not proposed AA has to refer the matter to IBBI for recommending the name of IRP. Registry has to send the communication immediately to IBBI.	

34	The IBBI has to recommend the name of IRP within 10 days from reference made to it and on receiving the reference from IBBI, the registry has to place the same before the Bench immediately for appointing the IRP.	
35	Every correspondence received from Committee Of Creditors/IRP/RP is required to be placed before the Bench immediately	PAGE:243-246, 252-253, 256,259,280,281,290,2 91,314,324,326,292